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Power of Attorney

A Power of Attorney (POA) allows another to act as an agent or attorney-in-fact for the grantor. The CSR is responsible for reading and reviewing each POA to determine the limitations.

Credential Power of Attorneys

- Custodial Care POA - a parent or guardian may delegate authority and power to another person or persons, thus allowing the person or persons to act on his/her behalf regarding the care, custody or property of his/her minor child, except consent to adoption or marriage
 - The custodial care POA is valid for six months, except in the case of a military member POA, which is valid for one year
- Military Member POA allows the designee to conduct business for the military member
- A valid Power of Attorney (POA) may be used to sign the Legal Guardian Certificate and/or Driving Practice Certificate see Policy [8.3.4 Power of Attorney](#). The follow is required for a valid POA:
 - Properly notarized
 - Is not expired
 - The grantor is not deceased or has not revoked the powers of the POA



View the [Forms Required for T&R](#) topic > [Power of Attorney](#) section under Title & Registration topics for more information on POAs and requirements.

Using a Power of Attorney to Issue a Non-Travel Identification Card

A valid Power of Attorney (POA) may be used to allow the designee to request a Non-Travel Identification Card for a customer who has previously met all applicable eligibility, identity, authorized presence requirements and has an existing photo on file. The following applies:

- 12-year photo rule does not apply
- POA cannot be used to apply for a driver license or a travel credential (including duplicates)
 - For extenuating circumstances reach out to MVD Constituent Services
- POA cannot be used to get an ID for a customer with the Sex Offender characteristic
- Application must be properly signed by the designee (e.g., John Smith by Shirley Jones POA)

- [Driver License/ ID Cancellation Request, form #96-0384](#) must be completed when the customer has a current driver license on record

View Photo Management & Verification of Signatures > [Use Existing Photo and/or Signature](#) section for information on how to issue a credential using the existing photo.



The POA is required to be scanned with the Identification Application.

Policy

[8.3.4 Power of Attorney](#)

[3.3.5 Licensing Variations Specific to Minors](#)

Forms

[#40-5122 Travel License/Identification Application](#)

[#40-5122s Travel License/Identification Application \(Spanish\)](#)

[#48-1001 Power of Attorney](#)

HELPFUL LINKS

- » [MVD / DMV Public Website](#) »
- » [Customer Portal](#) »

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